

26STCP01373 26STCP01373

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 26STCP01373 Hearing Date: August 5, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Judith Parker's Amended Petition to Release

Property from Mechanic's Lien is granted. Petitioner's request for attorney's fees is granted in the amount of \$1,800.00 and the request for costs is denied without prejudice.

Petitioner is to file and serve a proposed judgment in accordance with this ruling within 20 days.

Analysis:

Petitioner Judith Parker ("Petitioner") filed the instant Petition for Release of Mechanic's Lien against Respondent United 1 Construction ("Respondent") on April 1, 2026. Petitioner filed proof of service of the Petition and Notice of Hearing on April 9, 2026. At the initial hearing on May 1, 2026, the Court denied the Petition without prejudice to Petitioner filing and serving an Amended Petition that includes the legal description of the property. (Minute Order, 05/01/26.)

On May 19, 2026, Petitioner filed and served an Amended Petition and an Amended Verification to Petition for Release of Mechanic's Lien. On July 13, 2026, the Court set the Amended Petition for hearing on August 5, 2026 and gave notice to Petitioner. Petitioner filed a Notice of Ruling on July 14, 2026, demonstrating notice of the new hearing date on Respondent by certified mail. No response to the Petition has been filed to date.

Discussion

Petitioner moves for an order releasing the mechanic's lien recorded by Respondent against their property. Under Civil Code section 8484, the petition for release order must be verified by the petitioner and must allege the following:

(a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.

(b) The county in which the claim of lien is recorded.

(c) The book and page or series number of the place in the official records where the claim of lien is recorded.

(d) The legal description of the property subject to the claim of lien.

(e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.

(f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.

(g) Whether an action to enforce the lien is pending.

(h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or another restraint prevents the claimant from commencing an action to enforce the lien.

(Civil Code, § 8484.) The Amended Petition is verified and now fully complies with the above requirements by including the legal description of the Property. (Amended Pet., ¶4.) Petitioner served Respondent with the Amended Petition and Notice of Ruling by certified mail, as permitted by Civil

Code section 8486, subdivision (b). (Proof of Service, filed 05/19/26; Notice of Ruling, pp. 4-9.) The Court grants the Amended Petition in favor of Petitioner.

Additionally, Petitioner seeks attorney's fees of \$2,925.00 pursuant to Civil Code section 8488, which provides that "The prevailing party is entitled to reasonable attorney's fees." (Civ. Code, § 8488, subd. (c).) As the party in whose favor the Court grants the Amended Petition, Petitioner is entitled to an award of reasonable attorney's fees under this statute. Petitioner's counsel bills at \$450.00 per hour, but does not justify the rate. (Pet., Ryan Decl., ¶2.) For a straightforward and unopposed petition to release mechanic's lien, the Court finds the billing rate excessive and reduces it to \$400.00. Petitioner's attorney contends he billed 5.5 hours to draft the demand letters and Petition, and one hour to prepare for and attend the hearing. (Id. at ¶3.) The time spent to draft the demand letters and Amended Petition, which is only five pages, is reduced to 3.5 hours. Therefore, Petitioner is awarded attorney's fees of \$1,800.00.

Petitioner also moves for costs pursuant to Civil Code section 8488, subdivision (c), but the statute refers only to attorney's fees. (Amended Pet., ¶17.) The request for costs is denied.

Conclusion

Petitioner Judith Parker's Amended Petition to Release Property from Mechanic's Lien is granted. Petitioner's request for attorney's fees is granted in the amount of \$1,800.00 and their request for costs is denied without prejudice.

Petitioner is to file and serve a proposed judgment in accordance with this ruling within 20 days.

Moving party to give notice.